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15 May, 2023

Mr XXXXX
Director
Crowd Tech Ltd
(c/o Data Protection Officer)

****Decision****

****Unsolicited calls and erasure request****

Further to the exchange of communications between Cyprus SA (the Commissioner for Personal Data Protection) and Crowd Tech Limited concerning a complaint involving Trade360.com, we would like to bring to your attention the following assessment of the Commissioner.

****Summary of the Case****

2. A complaint was lodged on the 20th of November, 2020 in Poland against Athena Investments Dom Makerski S.A. ("the processor"). The complainant claimed that the processor processed his data without a legal basis, since he has never provided them with his phone or personal information, nor has he given them his consent for marketing calls. The complainant clarified that only contact with the processor was by telephone, and any request to delete his personal data ended immediately the recorded conversation, so that the request could not be registered. He did not take any other steps to solve the situation with the processor.

2.1 The Polish Supervisory Authority contacted the processor and the processor answered that it had received the complainant's data from the company Crowd Tech Ltd ("the controller") on 31.08.2020. They processed the complainant's data (name, surname, telephone number and email address) on behalf of the controller. The legal basis for processing was Article 28 of Regulation 2016/679. The purpose was to present the services offered by the controller and they have called the complainant by phone on 01.09.2020 and 20.11.2020, informing him that they were acting on behalf of the controller. According to the processor, the complainant did not request deletion of his data; he simply stated that he was not interested in the services offered to him. They did not receive any written request from the complainant (in writing or by an e-mail) addressed to the DPO. The processor presented to the Polish SA part of the processor's agreement with the controller, in support of its position. Then, the complaint was transmitted by the Polish SA to the Commissioner for Personal Data Protection (Cyprus SA), to be handled as a local case, since the controller is an investment company registered in Cyprus.

2.2 Before investigating the complaint, we asked clarifications from the Polish SA. The complainant (through the Polish SA) clarified that he was not a client of the controller, that the call was on his private phone number and that he exercised his rights towards the processor asking for the erasure of his personal data from their database.

2.3 During the investigation of the complaint with the controller, the controller initially clarified the following, presenting relevant documentation to establish its positions:

- There was indeed a call between the processor and the complainant.
- The complainant was considered to be a lead (potential client) as he never activated any trading account with the controller and thus no contractual relationship was established between them.
- His information was provided by the complainant via online marketing/landing pages and banners to either a partner, affiliate or the company. During this process, leads may then share their information via their account registration through landing pages and banners. The aforementioned registration of the complainant occurred from a specific (given) IP address through a specific landing page via which the complainant accepted to receive further marketing calls. The complainant entered his information and submitted it over a click of a button via the Polish Website as seen over a screenshot which the

controller provided. According to the screenshot, the information of the complainant entered the system on the 28.8.2020 07:28 from a specific IP Address, using the trade360_pl site. The legal basis was consent, since any data subject can freely register over a landing page/website and submit registration details by a click of a button.

- The processor handles any GDPR-related data subject request by directly forwarding such request towards their DPO's email address. With respect to the case of the complainant, the processor notified the controller via email and the controller proceeded with unsubscribing the complainant from their records. The complainant was unsubscribed on 15.12.2020, i.e. the day of receipt of the request from the processor. Relevant print screen was provided. Moreover, the controller provided us with their Clients Data Subjects Request Registry, confirming by this the way they have handled the specific request.

2.4 The above clarifications were forwarded to the complainant through the Polish Authority. The complainant, however, insisted that he has never been a customer of the controller, wondering how the controller linked the click on the button to his phone number and his consent to phone contact, indicating that there was a very low probability that he used the button on August 28, 2020 at 7.28, because he was probably still asleep at this time, saying that he has reached out to the processor asking to delete his personal data on 20 November 2021 and on 22 November 2021 he received a reply about their deletion, providing a photo of an email received by the processor, and wondering if the processor has a copy of his request to delete his personal data, because his request was made later than indicated by the processor. He insisted on his complaint because he thought the explanations provided were insufficient and the evidence provided was incomplete.

2.5.1 We informed the controller regarding the complainant's response and the controller replied that the complainant was categorized as per the company's internal procedure as a potential client since he entered his information over a landing page (Polish Website) and submitted his registration details. They had used the subm...

communication list was on 15.12.2020, and the initial request for deletion was made on 20.11.2020, the controller acted within the required timeframe to unsubscribe the complainant. However, due to the legal obligations imposed by MiFiD, MiFiR, and national Law 87(1)/2017, the controller is unable to erase the complainant's personal data entirely.

5. In conclusion, the controller has complied with the request to unsubscribe the complainant from all communication channels and has clarified that the retention of the complainant's data is mandated by law. The controller has also provided evidence of the complainant's registration details and the security measures in place to protect that data. The complainant's classification as a potential client is supported by the information provided during the registration process, and the controller's actions align with the legal requirements set forth in the GDPR and relevant national legislation.

6. Recommendations:

6.1 The controller should continue to ensure compliance with GDPR and relevant laws regarding data retention and processing.

6.2 The controller should maintain clear communication with data subjects regarding their rights and the reasons for data retention.

6.3 The controller may consider reviewing their data retention policies to ensure they are in line with best practices and legal requirements.

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controller's communication list, the complainant did not receive any other marketing call.

Conclusion

5. Having in mind the results of the investigation, which showed that the complainant's request was handled in due time and in respect of Article 12(3), 17(1)(c) and 21(3) of the GDPR, I find no reason to take any further actions or enforce any corrective power.

Commissioner for Personal Data Protection

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